

CONSULTING AGREEMENT

This Agreement is entered into as of Mar 10, 2025 (the "Effective Date") by and between Orchard Group, with its principal place of business in Chicago, IL ("Client"), and Delta Holdings, with its principal place of business in Nashville, TN ("Provider"). The parties agree as follows:

1. Intellectual Property

All work product created by Delta Holdings specifically for Orchard Group under this Agreement shall be the sole property of Orchard Group upon full payment of the applicable fees. Delta Holdings retains ownership of its pre-existing materials, tools, and methodologies.

2. Termination

Either party may terminate this Agreement upon 60 days' written notice to the other party. Either party may terminate immediately upon a material breach by the other party that remains uncured 60 days after written notice of the breach.

3. Scope of Services

Delta Holdings shall provide the services described in Exhibit A (the "Services") to Orchard Group in a professional and workmanlike manner, consistent with industry standards. Any changes to the scope of the Services must be agreed in writing by both parties before work begins.

4. Compensation

In consideration of the Services, Orchard Group shall pay Delta Holdings fees not to exceed \$130,000 per invoice period. All invoices are payable within 60 days of receipt. Amounts unpaid after the due date accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law.

5. Limitation of Liability

Except for breaches of confidentiality, neither party shall be liable for any indirect, incidental, special, or consequential damages arising out of this Agreement. Each party's aggregate liability shall not exceed the total fees paid or payable by Orchard Group in the twelve months preceding the claim.

6. Entire Agreement

This Agreement, together with its exhibits, constitutes the entire agreement between Orchard Group and Delta Holdings with respect to its subject matter and supersedes all prior or contemporaneous understandings. Any amendment must be in writing and signed by both parties.

7. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Colorado, without regard to its conflict of laws principles. The parties consent to the exclusive jurisdiction of the state and federal courts located in Colorado.

8. Confidentiality

Each party agrees to hold in strict confidence all non-public information disclosed by the other party in connection with this Agreement, and to use such information solely to perform its obligations hereunder. This obligation survives termination of this Agreement for a period of 6 months.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Carlos Walker, Orchard Group

Nina Anderson, Delta Holdings